

BLOODBORNE, CONTAGIOUS, COMMUNICABLE OR INFECTIOUS DISEASES

The Loudoun County School Board recognizes the importance of protecting students and staff from the transmission of bloodborne, contagious, communicable, or infectious diseases while protecting the rights of individuals with said diseases. Loudoun County Public School staff will work collaboratively with the Loudoun County Health Department on matters that may potentially affect the health and safety of the school community.

A. Definitions.

1. A bloodborne disease is defined in this policy as a disease that can be spread by blood and other bodily fluids. Examples of bloodborne diseases include Human Immunodeficiency Virus (HIV) or Hepatitis A, B, or C.
2. Contagious diseases are defined as diseases that can be transmitted from person to person. Examples of contagious diseases include mumps or hand, foot, and mouth disease.
3. Communicable diseases are defined as diseases that may be transmitted directly or indirectly to another person. Some examples of communicable diseases could include influenza, tuberculosis, chicken pox, measles, pertussis, or strep throat.
4. Infectious diseases are defined as diseases that are caused by organisms (such as bacteria, viruses, and fungi) that enter the body, multiply, and are capable of producing an infection. Examples of infectious diseases include Lyme disease, West Nile virus, or ringworm.

B. Procedures.

1. Any student who is suspected of having a disease, other than those infections of blood or bodily fluids, shall be observed by Student Health Services staff to confirm the presence or absence of symptoms.
2. If it is determined by Student Health Services staff that the student should be excluded from the school environment due to symptoms of a suspected disease, the parent or guardian shall be contacted to remove the child from school. The affected individual may be isolated from other persons, while on school property, until removal occurs.
3. Medical diagnosis or treatment by an authorized health care provider or the Loudoun County Health Department will be encouraged.

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4. In some instances, students with bloodborne diseases may be excluded from school and school related functions pending a review and decision by the superintendent, or designee. The decision to exclude a student will be determined on a case-by-case basis according to Regulation 8415. The affected student may be excluded until the student is cleared to return to school per Regulation 8415.

5. A student may also be excluded from school and school related functions due to a contagious, communicable, or infectious disease. The student may return to school at such time as the student's condition does not jeopardize the health and safety of other students or staff. A statement may be required from an authorized healthcare provider, to include the student's physician, physician assistant, advanced practice registered nurse, and/or the Loudoun County Health Department certifying that the student's condition does not jeopardize the health and safety of other students or staff.

6. An alternative instructional plan may be made available to the student if the absence is expected to exceed two consecutive weeks per Policy 5360.

7. The student's identity will be kept confidential and revealed only in accordance with the Code of Virginia [§32.1-127.1:03](#) and the Family Educational Rights and Privacy Act (FERPA), [20 U.S.C. §1232g](#), and the Individuals with Disabilities Education Act (IDEA), [20 U.S.C. §1412\(a\)\(8\)](#) and [§1417\(c\)](#).

[Former Policy 8-52]

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Leg. Refs.: Code of Virginia §§ [22.1-254](#), [22.1-271.3](#), [22.1-272](#), [32.1-36.1](#), [32.1-127.1:03](#), [54.1-2952.2](#), [54.1-2957.02](#); [20 U.S.C. §1412\(a\)\(8\)](#) and [§1417\(c\)](#); [20 U.S.C. §1232g](#), [Family Educational Rights and Privacy Act](#).

Cross Ref: Policy [5360](#), Homebound and Home-Based Instruction